Docusign Envelope ID: E89F59B0-3B90-4E34-8563-FAB90D4E1568

Panasonic Projector and Display Americas, LLC
RESALE And DISTIBUTION AGREEMENT

This Resale and Distribution Agreement (the "Agreement") is made and entered into as of December 5th , 2025 (the "Effective Date") by and between Summit Technology Laboratory, a California corporation, with offices at 2 Murasaki Ct., Irvine, CA 92617-4089 ("Supplier" or "STL") and Panasonic Projector & Display Americas, LLC, a Delaware corporation with offices at Two Riverfront Plaza, 2nd Floor, Newark, NJ 07102 ("PPNDA"). In consideration of the mutual covenants set forth herein, the parties signing below, intending to be legally bound, hereby agree to all of the terms and conditions set forth herein and any Exhibits and Schedules attached hereto, which shall be part of this Agreement.

SECTION 1: SCOPE; APPOINTMENT; LIMITATIONS

1.1 Scope. Supplier is engaged in the business of providing Software and Services, as more fully described in Exhibit A hereto. Supplier desires to appoint PPNDA as a reseller of the Software and Services, and PPNDA desires to accept such appointment.

1.2 Appointment; License Grant. Supplier hereby appoints, and PPNDA hereby accepts such appointment, as an independent, non-exclusive reseller of Software and Services to PPNDA's customers, as priced in Exhibit A Supplier hereby grants to PPNDA a revocable, non-exclusive, non-assignable, non-transferable right and license (with right of sublicense through PPNDA-authorized distributors and dealers) to market, advertise and distribute the Software, indirectly to PPNDA-authorized distributors, dealers and directly to end-user customers in the United States. Supplier shall provide the Software and Services to end-user customers that execute an end user software license and services agreement ("EULA") in accordance with Section 4.2. Notwithstanding the foregoing, Supplier hereby agrees not to solicit sales of or sale licenses to the Software and Services either directly or indirectly, to PPNDA customers for a period of six(6) months from the date of disclosure to Supplier, unless Supplier has offered, or is already in the process of offering license to the Software to any customer on PPNDA's list ("Supplier Customer"). The parties hereby agree to periodically review and discuss mutual customer sale opportunities involving PPNDA's products and Supplier Software and Services as set forth in Exhibit A.

1.3 Trademark and Logo Use. PPNDA shall be permitted to use Supplier trademarks and logos ("Trademarks"), for purposes of marketing, advertising, and promoting the Software and Services as permitted under this Agreement. PPNDA agrees to use the Trademarks in accordance with Supplier's trademark policy, as provided by Supplier to PPNDA in advance. Supplier shall have the right to amend its trademark policy from time to time and shall notify PPNDA of such amendments or revisions. PPNDA agrees not to attach any additional trademarks, logos, or designations to the Software and Services, and further agrees not to affix Trademarks to any products other than the authorized Software and Services. Any use of Supplier's Trademarks by PPNDA will inure solely to the Supplier's benefit. Supplier shall be permitted to use PPNDA's Trademarks for sole purposes of marketing and promoting PPNDA's appointment as the reseller of Products hereunder. Supplier agrees to use the Trademarks in accordance with the PPNDA's trademark guidelines, as provided by PPNDA to Supplier in advance. Any use of PPNDA's Trademarks by Supplier will inure solely to PPNDA's benefit.

SECTION 2: TERM AND TERMINATION

2.1 Term. This Agreement shall continue for a period of six (6) months from the Effective Date ("Initial Term") unless extended by mutual agreement of the parties or unless terminated by either Supplier or PPNDA in writing thirty (30) days in advance of the expiration of the then-current term or otherwise terminated early in accordance with this Agreement.

2.2 Termination. Either Supplier or PPNDA may terminate this Agreement (i) at any time prior to the expiration of the then-current term if the other party has committed a breach of any of its obligations hereunder that has not been cured within thirty (30) days after receipt of written notice; (ii) by either party during the Renewal Term, for any reason, by giving sixty (60) days prior written notice, provided, however, that Supplier shall continue to fulfill outstanding orders for the Software and Services pursuant to the terms of this Agreement placed by PPNDA or PPNDA authorized distributors or dealers prior to termination, so long as Supplier receives a payment for the Software and Services; or (iii) by mutual written agreement of the parties.

2.3 Post Termination Obligations. Upon termination of this Agreement, PPNDA shall: (i) immediately discontinue all further promotion, sales and marketing of the Software and Services, and (ii) cease and discontinue all display, advertising and use of all Trademarks. Each party shall: (i) promptly return to the other all tangible property representing the other party's Confidential Information (as defined below) and/or Intellectual Property (as defined below) pursuant to this Agreement, and all copies thereof; and (ii) erase/delete any such Confidential Information or Intellectual Property held by it in electronic form. Notwithstanding the foregoing, the receiving party shall be entitled to retain (a) with respect to information in electronic form, archival copies of such Confidential Information to the extent such archival copies have been systemically created pursuant to the receiving party's information technology procedures and/or (b) with respect to information in physical form, one archival copy of such Confidential Information in a secure location; provided that all such retained Confidential Information shall remain subject to the confidentiality and non-use terms of this Agreement.

SECTION 3: PPNDA MARKETING OBLIGATIONS

3.1 Marketing and Promotion. PPNDA will conduct marketing, sales and advertising activities in connection with the Software and Services in a professional manner and in accordance with the terms of Exhibit A.

SECTION 4: PRICING; PAYMENT, ORDERING AND DELIVERY

4.1 Pricing and Payment. PPNDA shall pay to Supplier the prices set forth in Exhibit A. The prices charged by Supplier for Software and Services shall remain firm for the Initial Term. Supplier shall give ninety (90) days advance notice to PPNDA if Supplier intends to change prices at the commencement of the next Renewal Term. Price changes shall apply to any order received after the effective date of such increase.

Any subsequent pricing may be changed in the Agreement upon renewal or at any time during the term if mutually agreed to by the parties. Such changes once agreed to by both parties, can be made via email, and by referencing to and superseding the original pricing in the Agreement and that will confirm acceptance of the new price list by both parties.

4.2 **Order Procedures; End User License Agreement.** All orders for Software and Services by PPNDA to Supplier shall be made by purchase order or other method as agreed by PPNDA and Supplier. Supplier shall furnish the Software and Services at such times and places as may be agreed to by the parties in the applicable EULA and/or a statement of work.

The Software (and related documentation) will be licensed and distributed to end user customers pursuant to the terms of the end user license agreement agreed to between the Supplier and the end user customer ("EULA") in the form attached hereto as Exhibit B and incorporated herein by reference. For the avoidance of doubt and except as set forth in this Agreement, PPNDA will have no responsibilities or obligations and hereby disclaims any liability for compliance with the EULA between the parties, including but not limited to obligations related to security and privacy protection of end-user customer data, warranty and service support or any indemnification obligations.

4.3 Maintenance and Support. Subject to payment of the applicable fees, Supplier will provide Maintenance and Support Services (as defined in Exhibit A) directly to end user customers in accordance with the EULA and Supplier's then current customer support policy. PPNDA will act as a first point of contact and provide level one support to its customers. Any issues not resolved by PPNDA will be directed to Supplier in accordance with procedures agreed upon from time-to-time by PPNDA and Supplier. PPNDA will have no liability for the Maintenance and Support Services provided by Supplier to end user customers.

4.4 From time to time, the parties may agree that Supplier will perform professional services for the benefit of end user customers. In each case, the professional services will be described in a statement of work in substantially the form attached hereto as Exhibit C and incorporated herein by reference that describes, at a minimum, the scope of the professional services to be performed, deliverables, if any, to be delivered by Supplier and the amounts payable therefor.

SECTION 5: FEES AND PAYMENTS

5.1 **Payment. Supplier shall issue an invoice to** PPNDA for any Software and Services ordered by PPNDA and provided by Supplier. Payment shall be made to Supplier net forty-five (45) days from receipt of invoice.

5.2 **Taxes and Other Charges.** PPNDA shall be responsible for paying all federal, state, local, value-added, transportation, shipping, insurance, domestic or foreign duties, or any other taxes, assessments or charges or amounts levied in lieu thereof and any interest or penalties thereon, based on this Agreement for the Software and Services, except for taxes based on the net income of Supplier. PPNDA will remit all such charges to the appropriate tax authority. Taxes and other charges are not included in the prices set forth herein and shall be added to each invoice as separate charges.

5.3 **Expenses.** Each party shall bear its own expenses incurred in performing its obligations under this Agreement, except as expressly provided herein. PPNDA shall be responsible for expenses associated with sales of Software and Services to its distributors, resellers and end user customers, including, without limitation, all costs relating to the marketing, sales, advertising (including collateral material) and distribution of the Software and Services by PPNDA.

SECTION: 6 OWNERSHIP; CONFIDENTIALITY

6.1 **Ownership.** PPNDA acknowledges and agrees that all of the existing property and all other existing materials in connection with the Software and Services, including, but not limited to, any software (in object code and source code form), script, programming code, data, domain names, patents, copyright, trademarks, trade secrets, know-how, methodologies, processes and other information developed or provided by Supplier related to the Software and Services (together "Intellectual Property"), shall remain the sole and exclusive property of Supplier and/or its suppliers and licensors. Supplier and/or its suppliers and licensors reserve all right, title and interest in and to the Intellectual Property associated with the Software, and PPNDA shall not have any ownership or use rights, express or implied, other than those expressly provided in this Agreement.

6.2 **Confidentiality.** The parties agree that all information disclosed by one party (the Discloser) to the other party (the "Recipient"), whether in oral form, visual form or in writing, including but not limited to, all business plans, business opportunities, customer lists, finances, research, development, designs, specifications, formulas, prototypes, computer programs and any and all records, data, ideas, methods, techniques, processes and projections, plans, marketing information, materials, memoranda, analyses, notes, legal documents and other data and information (in whatever form), as well as improvements, and any know-how related thereto, third-party confidential information disclosed hereunder, the terms and conditions of this Agreement or any information that a reasonable business person would consider private, sensitive or proprietary (collectively "Confidential Information") shall be treated by Recipient on a confidential basis. Confidential Information shall not include information which (i) was already known to the Recipient without any confidentiality obligations prior to its disclosure hereunder; (ii) is or becomes publicly available other than by the Recipient's breach of the provisions of this Section 6.2; (iii) is received from a third party having no obligation of confidentiality with regard to such information; or (iv) is independently developed by or for the Recipient without reliance on the Confidential Information of the Discloser. The Recipient agrees to use Confidential Information solely for the purpose of this Agreement. Except as may be required by law, the Recipient shall not disclose, publish, or disseminate Confidential Information to a third party other than those of its employees and consultants with a need to know for the purposes of this Agreement, and the Recipient agrees to take reasonable precautions to prevent any unauthorized use, disclosure, publication, or dissemination of Confidential Information. Recipient will ensure that all employees and consultants that get access to the Discloser's Confidential Information are subject to confidentiality obligations at least as restrictive as set forth hereunder. Recipient will be liable for any breach by its employees or consultants of the obligations hereunder. In performing its duties and obligations hereunder, the Recipient agrees to use at least the same degree of care as it does with respect to its own confidential information of like importance but, in any event, at least reasonable care. The obligations set forth in this Section 6.2 (Confidentiality) shall remain in full force and effect with respect to any item of Confidential Information throughout the Initial Term and any Renewal Terms for a period of three (3) years following the termination or expiration of the Agreement. For the avoidance of doubt, the termination or expiration of this Agreement shall not affect either Party's obligations set forth herein with respect to Confidential Information which was disclosed by Discloser to the Recipient prior to the termination or the expiration of this Agreement.
Upon termination or expiration of this Agreement, the Recipient will return to the Discloser or destroy any and all Confidential Information received from the Discloser that it has in its possession, including any copies, summaries or extractions thereof. If Recipient elects to destroy Discloser's Confidential Information, Recipient will certify in writing to Discloser. Recipient shall not be required to destroy or return any electronic copies of Confidential Information created pursuant to its standard electronic archival and back-up procedures; provided, that such electronic copies shall

Docusign Envelope ID: E89F59B0-3B90-4E34-8563-FAB90D4E1568

remain subject to this Agreement as long as it remains in Recipient's possession.

6.3 **Exclusions and Limitations.** PPNDA shall: (i) not attempt to obtain, receive, review, or otherwise use or have access to any source code component of the Software (or any part thereof) by reverse engineering, decompiling, disassembling or by any other means any component of the Software; and (ii) not copy, reverse engineer, disassemble, de-compile, translate, modify (including, without limitation, develop derivative works of) the Software, or grant any other third party the right to do so.

SECTION 7: INDEMNIFICATION

7.1: Each party shall defend and indemnify the other party against and hold the other party harmless from, any and all claims, damages, and expenses (including reasonable attorneys' fees and costs of litigation) alleged by any third party arising out of or resulting from the negligent acts or omissions or willful misconduct of such party or such party's misrepresentations relating to the other party, the Software and Services, or this Agreement, regardless of the form of action.

7.2: **Intellectual Property Indemnification.** (a) Supplier agrees to indemnify, defend and hold PPNDA harmless against any and all claims that the Software and Services, or any component thereof infringe upon any patent, copyright, trademark, trade secret or other intellectual property rights of third parties. Supplier hereby represents and warrants that it has no knowledge of any such claim of infringement. Supplier shall assume the defense of any suit, action, proceeding or objection based on any such claim of infringement brought against PPNDA specifically relating to the Software and Services by counsel retained at Supplier's own expense, and shall pay any damages assessed against or otherwise payable by PPNDA in any such suit as a result of the final disposition of any such claim, suit, action, proceeding or objection, provided PPNDA, upon receiving notice thereof, promptly notifies Supplier of such claim or of the commencement of any such suit, action, proceeding or objection, or threat thereof, and Supplier is afforded the opportunity, in its sole and absolute discretion, to determine the manner in which such claim, suit, action, proceeding or objection shall be handled or otherwise disposed of. PPNDA shall give Supplier the cooperation Supplier requires, at Supplier's sole cost and expense, and Supplier shall reimburse PPNDA for all reasonable costs and expenses incurred by PPNDA, except for salaries of the employees of PPNDA and fees and expenses of any counsel retained by PPNDA in defense of any such claim, suit, action, proceeding or objection. (b) Notwithstanding the foregoing, PPNDA may be represented in any such suit by its own counsel at its own cost and expense; provided, however, that PPNDA shall not consent to any judgment or decree in any such suit or pay or agree to pay any sum of money or agree to do any other act in compromise of any such claim of a third party without first obtaining Supplier's consent thereto in writing. (c) In the event that the use or sale of Software, or any part thereof, is preliminarily or permanently enjoined by reason of infringement of patent, copyright, trademark, trade secret or other intellectual property rights of third parties, Supplier shall, at Supplier's sole cost and expense, take any one of the following actions, in Supplier's sole and absolute discretion: (i) procure for PPNDA and its end-user customer the right to continue the use and/or sale of said Software; or (i) modify the infringing Software so they become non-infringing.; or if neither (i) nor (ii) is reasonably practicable, (iii) terminate this Agreement and the applicable license for the Software and refund to PPNDA the full purchase price of the enjoined Software, and any reasonable and necessary direct shipping costs, if any, associated with such return. Upon Supplier's fulfillment of (i), (ii) or (iii), Supplier shall thereafter be relieved of any further obligation or liability to PPNDA as a result of any such infringement, except for Supplier's obligations pursuant to clause 7.2(a).
(d) Supplier's obligations set forth in this Section 7 shall survive the expiration or termination of this Agreement.

SECTION: 8 WARRANTIES

Supplier represents and warrants that the Services will be performed in a professional and workmanlike manner in accordance with industry standards. The **Software** warranties will be provided by Supplier directly to end user customers in accordance with the terms of the EULA. Supplier will handle and resolve the warranty claims directly with the applicable end-user customer. THE EXPRESS WARRANTIES SET FORTH HEREIN ARE IN LIEU OF ALL OTHER WARRANTIES, EXPRESS, IMPLIED OR STATUTORY, INCLUDING, BUT NOT LIMITED TO, THE IMPLIED WARRANTIES OF MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE.

SECTION: 9 LIMITATION OF LIABILITY

EXCEPT FOR BREACHES OF CONFIDENTIALITY OBLIGATIONS IN SECTION 6.2 AND EXCEPT FOR INTELLECTUAL PROPERTY INDEMNIFICATION OBLIGATIONS IN SECTION 7.2, NEITHER PARTY SHALL BE LIABLE TO THE OTHER PARTY OR ANY THIRD PARTY WHATSOEVER FOR ANY INDIRECT, INCIDENTAL, CONSEQUENTIAL, PUNITIVE OR SPECIAL DAMAGES, INCLUDING, BUT NOT LIMITED TO, LOSS OF PROFIT, LOSS OF REVENUE, OR LOSS OF BUSINESS OR GOODWILL, SUFFERED BY ANY PERSON, ARISING FROM AND/OR RELATED TO THIS AGREEMENT AND/OR IN CONNECTION WITH THE SOFTWARE, EVEN IF A PARTY IS INFORMED IN ADVANCE OF THE POSSIBILITY OF SUCH DAMAGES. EXCEPT FOR BREACHES OF CONFIDENTIALITY OBLIGATIONS IN SECTION 6.2 AND EXCEPT FOR INTELLECTUAL PROPERTY INDEMNIFICATION OBLIGATIONS IN SECTION 7.2, NEITHER PARTY SHALL BE LIABLE TO THE OTHER PARTY OR ANY THIRD PARTY WHATSOEVER IN EXCESS OF THE FEES PAID OR PAYABLE BY PPNDA TO SUPPLIER IN THE TWELVE (12) MONTHS IMMEDIATELY PRECEDING THE CLAIM.

SECTION: 10 GENERAL

10.1 **Notice.** Unless otherwise specified herein, any notices or other communications required or permitted hereunder shall be given in writing and be delivered personally, sent by courier or e-mail providing proof of delivery to PPNDA at Two Riverfront Plaza, Newark, NJ 07102, Attn: Procurement, or e-mail to Petro.shimonishi@us.panasonic.com; and to Supplier at 2 Murasaki Ct., Irvine CA 92617-4089, Attn: Aditi Majumder or e-mail to aditi@summittechlab.com (or as subsequently designated by a party by notice to the other party given in accordance with this Section). Such notices or other communications shall be effective on the date of receipt.

10.2 **Relationship of the Parties.** The parties hereto are and shall remain independent contractors. Nothing herein shall be deemed to establish a partnership, joint venture or agency relationship between the parties. No party shall have the right to obligate or bind the other party in any manner to any third party.

10.3 **Entire Agreement.** This Agreement constitutes the entire agreement between Supplier and PPNDA with respect to the subject matter of this Agreement and supersedes all prior representations, proposals, discussions and communications, whether oral or in writing. All amendments, modifications or additions to this Agreement shall be in writing, signed by the parties. The terms and conditions of this Agreement shall apply to all orders for Software and Services submitted to Supplier by PPNDA and shall supersede any different or additional terms on PPNDA's purchase orders. Purchase orders shall be issued by PPNDA to Supplier solely for the purpose of requesting delivery dates and quantities.

10.4 **Severability.** Each covenant set forth in this Agreement is an independent and separate covenant. If any provision or any portion of this Agreement shall be held invalid, void or unenforceable for any reason, the remaining provisions of this Agreement and the remaining portion of any provision held invalid, void or unenforceable in part shall continue in full force and effect. In the event that any provision or portion thereof is held invalid, void or unenforceable for any reason by a court of competent jurisdiction, then such court shall, to the fullest extent permitted by law, apply an enforceable substitute for such provision or portion thereof so as to most nearly effect the parties' original intent.

10.5 **Waiver.** No provision of this Agreement may be waived, amended or otherwise modified except by a written agreement signed by each party hereto. The waiver by any party of the breach of any provision hereof shall not be construed as a waiver of subsequent breaches or as a continuing waiver of such breach.

10.6 **Survival.** The provisions of Sections 6, 7, 8, 9, and any other Sections or provisions, which, by their nature are intended to survive termination or expiration of this Agreement, shall survive termination of this Agreement for any reason.

10.7 **Successors and Assigns.** The terms and provisions of this Agreement shall be binding upon and inure to the benefit of the parties hereto, and their successors and assigns and legal representatives. Notwithstanding the above, neither party may assign this Agreement, nor any right granted hereunder, or sublicense, or permit any other person to obtain or exercise any rights in this Agreement, without the prior written consent of the other party. Any such attempt to assign this Agreement shall be void. PPNDA may assign the Agreement to any of its affiliates or to its successor or any entity acquiring all or substantially all of its assets pursuant to a sale, merger or acquisition.

10.8 **Compliance with Law.** Supplier represents and warrants shall be fully responsible for obtaining and providing, at its own cost, any and all licenses, permits, certificates and all other documentation and information required for the performance of Software and Services each party agrees to comply with all applicable laws and regulations. The Supplier will make no payments of money, or anything of value, which constitute illegal or corrupt practice, to anyone, either directly or indirectly, as an inducement or reward to retain business or gain an improper advantage in connection with any business venture or contract in which the Supplier is a participant.

10.9 **Governing Law.** The validity, construction and performance of this Agreement shall be governed and construed in accordance with the internal laws of the State of Delaware without regard to its conflict of laws rules.

10.10 **Export Compliance.** The parties acknowledge that the Supplier technical data may be subject to U.S. export control laws, including the U.S. Export Administration Act and its associated regulations, and may be subject to export or import regulations in other countries, which laws and regulations may among other things require PPNDA to obtain an export or import license for the Software. EACH PARTY WARRANTS TO THE OTHER PARTY THAT IT WILL NOT EXPORT, RE-EXPORT, OR IMPORT, DIRECTLY OR INDIRECTLY, THE SOFTWARE EXCEPT IN COMPLIANCE WITH ALL APPLICABLE LAWS AND REGULATIONS.

Agreed to and Accepted by:

PANASONIC PROJECTOR & DISPLAY AMERICAS, LLC		**SUMMIT TECHNOLOGY LABORATORY**	
By:	署名者: Takashi Uchida 1341D7FB100D474...	By:	DocuSigned by: Aditi Majumder 13828FF73D3E417...
Name:	Takashi Uchida	Name:	Aditi Majumder
Title:	CEO	Title:	Founder, President and CEO
Date:	12 15, 2025	Date:	Dec 7, 2025

Docusign Envelope ID: E89F59B0-3B90-4E34-8563-FAB90D4E1568

EXHIBIT A
SOFTWARE AND PRICING. MARKETING OBLIGATIONS

"Software" means the STL's Artemis software provided to PPNDA for resale and distribution to its end customers under this Agreement. The Software creates wrap-around displays using projectors on surfaces of many different shapes including planar, cylindrical, spherical and cubical.

A list of target customers has been provided by PPNDA to Supplier, which will be updated by PPNDA from time to time. Supplier will immediately inform PPNDA if there is a current Supplier Customer on PPNDA's list.

PPNDA will purchase and resell one-time licenses on a per-projector basis at the purchase price of $2,182.00 per license with the following margin structure:

Target Cost for Software (per Projector):

	One Time Purchase	
Target SRP	$	4,999.00
Target RRP	$	3,749.00
Target Distributor	$	3,637.00
Target PPNDA purchase price	$	2,182.00

Annual Maintenance and Support fee - $1,000 / license / year.

The test shall be deemed a success if PPNDA sales can close a total of 10 projects (4-8 licenses) with a total of approximately 80 licenses. Additional target customers may be added by PPNDA during the period.
Added implementation / deployment fee to be confirmed depending on the complexity of the project.
Division of roles and responsibilities between the parties are outlined below.

PPNDA will be responsible for:

- Presenting the Software to its customers
- Demonstrating the Software to its customers
- Quoting the Software licenses to its customers at the above-mentioned pricing structure.
- Following up on quotes and securing the purchase orders from customers.
- Placing purchase orders to Supplier with aforementioned purchase price and terms
- Managing customer transactions & terms
- Training customers on how to deploy the software
- Providing level one support to the customers
-

STL (Supplier) will be responsible for:

- Assisting PPNDA with determining what compute requirements are required for each customer's opportunity
- Assisting PPNDA with deployment of the Software
- Providing technical support to the installations over a 7-year period. Supplier will charge a maintenance and support fee to PPNDA for PPNDA customers. PPNDA will pass this maintenance fee on to customers with a small markup to cover operational costs.
    - If location doesn't change and camera placement doesn't change, little issues should occur.
    - If there are any changes in the components (servers, cameras, etc) then more extensive support may be needed
    - Minor bug fixes are included in the Software, but major changes will be a new product functionality (upgrade).
- Continue to develop the software

At the end of the Term (test period), the parties will discuss and evaluate together whether it makes sense for both companies to enter into a formal long-term business relationship.

Key Performance Indicators

- Target 20 customers + 20 Rental & Staging Customers – close transactions with 10-12 customers.
- Supplier to train PPNDA's technical team on software installation/deployment and hardware technical requirements for deployment.

Docusign Envelope ID: E89F59B0-3B90-4E34-8563-FAB90D4E1568

EXHIBIT B
END USER SOFTWARE LICENSE AND SERVICES AGREEMENT

This **Software License and Services Agreement** (this "***Agreement***") is made, as of [_____ __, 202_] (the "***Effective Date***"), by and between Summit Technology Laboratory, a California corporation with an address of 2 Murasaki Street, Irvine, CA 92617 ("***STL***") and [*Customer Corporate Name*], a [*Customer Place of Incorporation*] [*Customer Entity Type*] with an address of [*Customer Address*] ("***Customer***").

This Agreement establishes the terms under which Customer may use STL's Spatially Augmented Reality software platform Artemis™ (the "***Licensed Software***") and under which Customer may engage STL to perform certain professional services and provide certain deliverables relating to the Licensed Software.

In consideration of the mutual promises contained herein and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties hereby agree as follows:

Grant of License. Subject to the terms of this Agreement, STL grants to Customer a limited, non-exclusive, non-transferable license, for a period of five (5) years from the date of installation, to use the Licensed Software solely in executable form as set forth in the applicable Order Form (as defined below).

Installation. Customer may use only one (1) production copy of the Licensed Software installed on server(s) owned or controlled by Customer. If Customer wishes to expand the number of installations of the Licensed Software, then Customer may purchase additional licenses from STL. Any additional licenses will be subject to the terms of this Agreement will remain in force for a period of five (5) years from the installation of the Licensed Software.

Restrictions. Except as expressly permitted under this Agreement, Customer will not, and will not allow any third party to: (a) copy the Licensed Software (except for one (1) copy for backup and disaster recovery purposes or as otherwise described in the documentation comprising the Licensed Software); (b) modify, translate, adapt, alter, or create derivative works from the Licensed Software; (c) merge the Licensed Software with any other software or documentation; (d) reverse engineer, decompile, disassemble, or otherwise attempt to derive the source code of the Licensed Software; (e) distribute, rent, lease or loan the Licensed Software to any third party; or (f) use the Licensed Software for the business needs of another person or entity, including without limitation, providing outsourcing, service bureau, commercial hosting, application service provider or on-line services to third parties. Customer must not remove, alter or obscure any proprietary notice that appears on the Licensed Software or on any copies made in accordance with this Agreement.

Ownership. The Licensed Software is licensed, not sold, to Customer for use solely subject to the terms of this Agreement. The Licensed Software and all worldwide intellectual property rights therein, are and will remain the exclusive property of STL and its licensors. Except for the limited rights expressly granted under Section 1, Customer will have no right, title or interest (whether by implication, or otherwise) in or to the Licensed Software or any intellectual property rights therein. Customer agrees not to challenge STL's rights to, or otherwise attempt to assert any rights in, the Licensed Software.

Maintenance and Support Services. Subject to the terms of this Agreement, STL will provide the maintenance and support services as described in Exhibit B ("***Maintenance and Support Services***"). Other than the Maintenance and Support Services, STL will have no obligation to provide Customer any maintenance or support services. STL will only be obligated to provide Maintenance and Support services so long as Customer is not in material breach of this Agreement.

Professional Services. STL will provide such professional services ("***Professional Services***") as may be agreed to by the parties and described in written order forms signed by representatives of both parties (each an "***Order Form***"). During the term of this Agreement, the parties may enter into Order Forms from time to time, each of which shall be attached hereto and remain subject to the terms and conditions of this Agreement Each Order Form will describe, at minimum, the nature of each engagement, the scope of the Services to be provided, the relevant fees and charges, and the targeted start and end dates for the Professional Services. STL will only be obligated to provide Professional Services so long as Customer is not in material breach of this Agreement.

Changes to Order Form. Customer may submit to STL written requests to change the scope of Professional Services described in an Order Form (each such request, a "***Change Order Request***"). STL may, at its discretion, consider such Change Order Requests, but STL has no obligation to do so. If STL elects to consider such a Change Order Request, then STL will promptly notify Customer if it believes that the Change Order Request requires an adjustment to the fees or to the schedule for the performance of the Professional Services. In such event, the parties will negotiate in good faith a reasonable and equitable adjustment to the fees and/or schedule, as applicable. STL will continue to perform the Professional Services pursuant to the existing Order Form and will have no obligation to perform any Change Order Request unless and until the parties have agreed in writing to such an equitable adjustment.

Docusign Envelope ID: E89F59B0-3B90-4E34-8563-FAB90D4E1568

Customer Responsibilities. In connection with each Order Form, Customer will: (i) provide qualified personnel who are capable of performing Customer's duties and tasks under the Order Form; (ii) provide STL with access to Customer's sites and facilities during Customer's normal business hours and as otherwise reasonably required by STL to perform the Professional Services; (iii) provide STL with such working space and office support (including access to telephones, photocopying equipment, and the like) as STL may reasonably request; and (iv) perform Customer's duties and tasks under the Order Form, and such other duties and tasks as may be reasonably required to permit STL to perform the Professional Services. Customer will also make available to STL any hardware, data, information and any other materials required by STL to perform the Professional Services, including, but not limited to, any hardware, data, information or materials specifically identified in the Order Form (collectively, "***Customer Materials***"). Customer will retain title to all Customer Materials.

Fees and Payment.

License Fee. In consideration of the rights to the Licensed Software provided under this Agreement, Customer will pay STL the non-refundable License Fees set forth in the invoice submitted by STL to Customer ("***License Fees***").

Maintenance and Support Fee. Maintenance and Support Services will be provided by STL, if Customer pays the non-refundable annual maintenance and support fee set forth in the invoice submitted by STL to Customer.

Professional Services Fee. In consideration of the Professional Services performed by STL, Customer will pay STL the non-refundable fees and charges set forth set forth in the invoice submitted by STL to Customer ("***Professional Services Fees***") when due.

Payment. Payment of the License Fees, Maintenance and Support Fees, any Professional Services Fees, and any other fees due under this Agreement (collectively, "***Fees***") must be made in U.S. dollars. STL will invoice Customer in advance for the License Fee. The License Fee is due immediately upon the signing of the applicable Order Form. Maintenance and Support Fees will be invoiced in advance and will be due within thirty (30) days of the date of the invoice. All other Fees will be invoiced at the end of the month in which the Fees were incurred unless otherwise stated in an Order Form. Except as set forth in this paragraph or an Order Form, all Fees will be due within thirty (30) days of the date of the invoice. Any undisputed invoiced amounts which are not paid within thirty (30) days of the invoice date shall be considered past due. Customer will notify STL of any good faith dispute relating to any Fees in writing on or before the date that is thirty (30) days after the invoice date. Regardless of any reasonable dispute as to any Fees on an invoice, Company will pay all other non-disputed Fees on such invoice (and all other non-disputed Fees on every other invoice) not subject to a reasonable dispute, in accordance with the terms of this Agreement. Customer's obligation to pay Fees not subject to a reasonable dispute will be unconditional and not subject to abatement, set off or defence of any kind. All Fees are non-refundable. Fees exclude all applicable sales, use, and other taxes, fees, duties and similar charges, and Customer will be responsible for payment of all such taxes (other than taxes based on STL's income), fees, duties, and charges. Any portion of the non-disputed Fees not paid when due will accrue interest at 18% per annum (1.5% per month) or the maximum rate permitted by applicable law, whichever is less, from the due date until paid.

Term and Termination. The term of this Agreement will begin on the Effective Date and continue thereafter until terminated as set forth in this Agreement. This Agreement will automatically terminate if Customer breaches a material term of this Agreement, and such breach is not cured within thirty (30) days after Customer receives written notice from STL of such breach. If STL breaches a material term of this Agreement, and such breach is not cured within thirty (30) days after STL receives written notice from Customer of such breach, Customer may terminate this Agreement upon notice to STL. Customer may terminate an Order Form, if STL breaches a material term of the Order Form, and such breach is not cured within thirty (30) days after STL receives written notice from Customer of such breach. Upon any termination of an Order Form, STL shall submit to Customer a final itemized invoice for any Professional Fees accrued and reimbursable expenses incurred in connection with performing the Professional Services prior to such termination. Customer shall pay such invoice in accordance with the terms of this Agreement and, upon such payment, STL shall deliver to Customer all deliverables under the terminated Order Form in whatever state of completion.

Effect of Termination. Upon termination of this Agreement, all licenses granted under this Agreement shall immediately terminate and Customer shall forthwith cease any use of the Licensed Software. Subject to the foregoing, Sections 2, 3, 4, 8.1, 9.3, 10, 12, 15 and 16 shall survive any expiration or termination of this Agreement.

Representations, Warranties and Disclaimer.

Representations and Warranties. STL represents and warrants that the Licensed Software provided to Customer will function substantially in conformance with the functional specifications for the Licensed Software contained in the documentation or user manual provided by STL under normal use for a 30-day period from the Acceptance Date (the "***Software Warranty Period***").

Docusign Envelope ID: E89F59B0-3B90-4E34-8563-FAB90D4E1568

Remedies. During the Software Warranty Period, STL will use commercially reasonable efforts to correct any reproducible failure of the Licensed Software to comply with Section 9.1 that Customer reports in writing to STL within ten (10) days after such failure is discovered. STL will repair, replace or provide a workaround for the portion of the Licensed Software affected at its own expense. The warranty granted under Section 9.1 will be effective only during the Software Warranty Period and only for so long as (a) the Licensed Software has not been materially modified or customized by any person other than STL or its authorized agents or subcontractors, and (b) the Software has not been subject to any abuse, accident, or misapplication. The foregoing is Customer's sole and exclusive remedy and states STL's entire liability arising out of the warranty granted under Section 9.1.

Disclaimer. EXCEPT AS EXPRESSLY STATED IN THIS SECTION 9, TO THE MAXIMUM EXTENT PERMITTED BY LAW, STL SPECIFICALLY DISCLAIMS ALL OTHER WARRANTIES, EXPRESS OR IMPLIED, ORAL OR WRITTEN, ARISING BY LAW OR OTHERWISE, RELATING TO THIS AGREEMENT AND THE LICENSED SOFTWARE AND ANY SERVICES PROVIDED TO CUSTOMER, INCLUDING WITHOUT LIMITATION, ANY IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE AND NON-INFRINGEMENT OF THIRD PARTY RIGHTS.

Limitation of Liability.

Cap on Liability. EXCEPT FOR (A) EITHER PARTY'S LIABILITY WITH RESPECT TO A BREACH BY SUCH PARTY OF ITS CONFIDENTIALITY OBLIGATIONS HEREUNDER, (B) CUSTOMER'S LIABILITY WITH RESPECT TO ITS PAYMENT OBLIGATIONS OR THE BREACH OF LICENSE GRANT OR RESTRICTIONS UNDER THIS AGREEMENT, OR (C) EITHER PARTY'S LIABILITY FOR GROSS NEGLIGENCE OR WILLFUL MISCONDUCT, THE LIABILITY OF EITHER PARTY UNDER THIS AGREEMENT Or ANY ORDER FORM, REGARDLESS OF THE BASIS OF LIABILITY OR THE FORM OF ACTION, WILL NOT EXCEED THE FEES PAID TO STL FOR THE LICENSED SOFTWARE OR SERVICES to which such LIABILITY relates.

Disclaimer of Liability. IN NO EVENT WILL EITHER PARTY BE LIABLE FOR ANY INDIRECT, SPECIAL, INCIDENTAL OR CONSEQUENTIAL DAMAGES, HOWEVER CAUSED, WHETHER FOR BREACH OF CONTRACT, NEGLIGENCE OR OTHERWISE, AND REGARDLESS OF WHETHER SUCH PARTY HAS BEEN ADVISED OF THE POSSIBILITY OF THOSE DAMAGES, INCLUDING WITHOUT LIMITATION, COSTS OF PROCUREMENT OF SUBSTITUTE GOODS, LOST PROFITS OR REVENUES, LOSS OR RECONSTRUCTION OF DATA, OR LOSS OF ACCESS TO DATA. STL WILL NOT BE LIABLE FOR ANY network-related problems attributable to the Licensed Software or changes to network configuration that may affect the performance of the Licensed Software.

Indemnification.

Intellectual Property Infringement. STL shall defend, at its own expense, any action brought against Customer in a court of competent jurisdiction by a third party to the extent that such action is based upon a claim that the Licensed Software infringes a U.S. patent or U.S copyright issued as of the Effective Date. STL will pay those costs and damages finally awarded in such action, or those costs and damages agreed to in a monetary settlement of such action, in accordance with this Section 11.1. The foregoing obligations are conditioned on Customer (a) notifying STL promptly in writing of any such action; (b) giving STL sole control of the defence thereof and any related settlement negotiations; and (c) cooperating and, at STL's reasonable request and expense, assisting in such defence. Notwithstanding this Section 11.1, STL will have no obligation under this Section 11.1 or otherwise with respect to any infringement claim based upon: (i) any use of the Licensed Software not in accordance with this Agreement; (ii) any use of the Licensed Software in combination with products, equipment, software, or data not supplied or approved by STL if the infringement would have been avoided by the combination with other products, equipment, software or data; (iii) any use of any release of the Licensed Software other than the most current release made available to Customer; or (iv) any modification of the Licensed Software by any person other than STL or its authorized agents or subcontractors.

Additional Remedies. In the event that a final injunction is obtained against Customer's use of the Licensed Software, or if STL reasonably believes that Customer's use of the Licensed Software could be so enjoined, or if in STL's opinion the Licensed Software is likely to become the subject of a claim of infringement, STL may, at its option and expense, (i) procure for Customer the right to continue using the Licensed Software as provided in this Agreement, (ii) replace or modify the Licensed Software so that it becomes non-infringing, or (iii) accept return of the Licensed Software and terminate the license to the Licensed Software granted hereunder.

Sole Remedies. THIS SECTION 11 STATES STL'S ENTIRE LIABILITY AND CUSTOMER'S SOLE AND EXCLUSIVE REMEDY FOR INFRINGEMENT OR MISAPPROPRIATION CLAIMS.

Confidential Information. STL and Company are bound by the terms and conditions expressed in that certain and separate Non- Disclosure Agreement dated Jan 9, 2023 (the "***NDA***") currently in full force and effect, the terms of

Docusign Envelope ID: E89F59B0-3B90-4E34-8563-FAB90D4E1568

which are incorporated herein by reference. The NDA will apply to all information and materials received by each party pursuant to the Agreement. The existence and terms of this Agreement will constitute confidential information under the NDA.

Assignment. Customer may not assign, resell or otherwise transfer the Licensed Software or any goods or services received under this Agreement to a third party without the prior written consent of STL. Notwithstanding the foregoing, Customer may assign all of its rights and duties under this Agreement to a third party that: (a) directly or indirectly controls Customer; (b) is controlled by or under common control with Customer; or (c) purchases all or substantially all of Customer's assets; provided that: (i) Customer gives prior written notice to STL of the assignment, (ii) the assignee agrees to be bound by all the terms of this Agreement, and (iii) only one entity (i.e., the Customer or the third party) shall use the Licensed Software. Unless specifically authorized in writing by STL, assignment of this Agreement will not release Customer from any prior outstanding obligation under this Agreement or allow Customer or Customer's assignee, to expand the number of installations of the Licensed Software authorized under this Agreement. STL may assign or otherwise transfer this Agreement to a third party. This Agreement will inure to the benefit of each party's successors and permitted assigns. Any assignment in violation of this Section 13 is null and void.

United States Government Restricted Rights. The Licensed Software is comprised of "Commercial Computer Software" and "Commercial Computer Software Documentation," as such terms are used in 48 C.F.R. 12.212 or 48 C.F.R. 227.7202, as applicable. Consistent with 48 C.F.R. 12.212 or 48 C.F.R. 227.7202-1 through 4, as applicable, the Commercial Computer Software and Commercial Computer Software Documentation are licensed to any U.S. Government customers: (a) only as Commercial Items; and (b) with only those rights as are granted to all other customers pursuant to the terms of this Agreement.

Relationship. No agency, partnership, or joint venture is created by this Agreement. The parties are and remain at all times independent contractors and not agents or employees of the other party. Neither party has the authority to act for, bind, or incur any debts or liabilities on behalf of, the other party in any respect whatsoever. Each party will act in good faith and refrain from activities that attempt to induce the other party's employee(s) to leave their employer, or to interfere with the other party's relationship with its employees. The parties agree that during the term of the Agreement, and for a period of twelve (12) months thereafter, neither party will, in any way, directly or indirectly (a) induce or attempt to persuade any employee of the other to quit employment, (b) otherwise interfere with or disrupt the other party's relationship with its employees, or (c) knowingly solicit, entice or hire away any employees of the other party. Nothing in this Section 15 prohibits either party from hiring in response to a general solicitation for employment or if approached by the prospective employee without solicitation by the party hiring.

General Terms. If any provision of this Agreement is found to be unenforceable, such term will be considered severable from the remaining terms, which will continue to be valid and enforceable. Customer must not export, ship, transmit, or re-export the Licensed Software in violation of any applicable law or regulation, including without limitation, the Export Administration Regulations issued by the United States Department of Commerce. Any amendments or modifications of this Agreement will be binding upon the parties only if made in writing and signed by authorized representatives of both parties. Under no circumstances will the pre-printed terms of any purchase order or any other terms apply to this Agreement. This Agreement includes the Exhibits attached hereto and any Order Form issued under the Agreement (all of which are hereby incorporated herein and made a part hereof). The provisions of this Agreement will control with respect to the rights and obligations of the parties under this Agreement and any Order Form in the event of a conflict between this Agreement and any Order Form, unless the Order Form stipulates to the contrary. No waiver of any of the terms or conditions of this Agreement will be binding for any purpose unless made in writing and signed by authorized representatives of both parties and any such waiver will be effective only in the specific instance and for the purpose given. No failure or delay on the part of either of the parties in exercising any right will operate as a waiver, nor will any single or partial exercise by either of the parties of any right preclude any other or further exercise thereof or the exercise of any other right. All notices, consents and approvals under this Agreement must be delivered in writing by overnight delivery with a tracking system, personal delivery, or certified mail, postage pre-paid, to the other party at its address set forth above or at such other address as may be later designated by such party. Notices will be deemed to have been received upon the date of receipt or, in the case of certified mailing, two (2) days after deposit in the mail. This Agreement will be governed by the laws of the State of California without regard to conflicts of law principles. All disputes arising under this Agreement must be brought in the state and federal courts located in Orange County, California. Each party irrevocably hereby consents to the jurisdiction and venue of any such court in any such action or proceeding. Facsimile or PDF signatures on this Agreement will have the same effect as originals, and this Agreement may be executed in duplicates and counterparts, each of which will be effective as an original.

Docusign Envelope ID: E89F59B0-3B90-4E34-8563-FAB90D4E1568

Marketing. Customer agrees to appropriately co-brand STL's capabilities including, without limitation, placing the STL logo in a conspicuous location on each STL/Customer project and including STL in marketing materials where appropriate including web based platforms. In addition, Customer agrees to participate in reasonable joint marketing programs with STL. Such marketing programs will be mutually agreed upon, but will include, at a minimum, a press release announcing either that Customer has licensed STL's software or Customer has gone live using the STL software. Customer's logo will be included on STL's website, marketing materials and presentations. All material to be published featuring Customer (except for a mention of Customer in a general press release or client list) is subject to the prior approval of Customer, such approval not to be unreasonably withheld or delayed.

[Signature Page Follows]

The parties, intending to be legally bound by the terms of this Agreement, have executed this Agreement by their respective authorized representatives as of the Effective Date.

FOR STL:	**FOR CUSTOMER:**
Summit Technology Laboratory	**[_____]**
By: _____	By: _____
Name: _____	Name: _____
Title: _____	Title: _____

EULA - EXHIBIT B
Maintenance and Support Services

The Maintenance and Support Services are subject to the payment of all applicable Maintenance and Support Fees under the Agreement.

Maintenance Services

Maintenance Services include such updates, upgrades, and releases (major and minor) of the Licensed Software, including updated documentation, as STL in its sole discretion may make generally available to Maintenance Services subscribers. Updates, upgrades and releases or new versions of the Licensed Software provided through the Maintenance Services, whether from STL or a third party other than STL, will be subject to the same terms of this Agreement and will be deemed to be part of the Licensed Software upon provision to Customer.

Support Services

(1) The Support Services provided under this Agreement (the "***Support Services***") will include telephonic support during STL's normal business hours (8 am PST to 6 pm PST) with the exception of public holidays. Any Support Services provided by STL to Customer after normal business hours, or during STL holidays or other periods of closure, will be charged at STL's then-current rates and costs. The Support Services will be provided only for those questions and issues forwarded to STL from Customer's designated staff. The Support Services are offered to Customer on a commercially reasonable-efforts basis only and without any warranty, express or implied. Customer acknowledges that STL may not be able to resolve every request for support through the Support Services. Customer's exclusive remedy and STL's sole obligation for any failure to resolve a request shall be to use commercially reasonable efforts to resolve such request. In the event that the request for support is not covered by the Support Services, Customer may have to purchase additional services from STL. The Support Services are provided for on-going use of the Licensed Software; they are not intended to be a substitute for the professional services or training necessary for the implementation or installation or system redesign of the Licensed Software. All other services, including without limitation, on-site assistance, custom programming and network administration, and custom designed reports and forms, may be furnished by STL at STL's then-current rates and costs.

(2) As part of Support Services, STL will investigate all reproducible, material failures of the Licensed Software to conform to the functional specifications to as described in the applicable Documentation ("***Errors***"). STL will classify the severity of the Error, provide efforts to correct the Error or provide a workaround to the Error as defined in the table below.

Error Classification

Severity Level	Description	Response Time	Resolution Status/Effort
Urgent	Inability to use the Licensed Software in any way.	Within two (2) business hours	STL will provide daily status updates to the designated customer contact on all open Urgent issues. STL will work to resolve all Urgent issues on a 24-hour basis until such Urgent issue is resolved.
High	The Licensed Software is severely restricted in use causing major business impact.	Within four (4) business hours	STL will provide daily status updates to the designated customer contact on all open High priority issues. STL will work to resolve all High priority issues until such High priority issue is resolved.
Normal	A non-critical component of the Licensed Software is malfunctioning causing moderate business impact.	Within two (2) business days	STL will provide daily status updates to the designated customer contact on all open Normal priority issues.
Low	Any other issue that is not an enhancement.	Within five (5) business days	STL will provide weekly status updates to the designated customer contact on all open Low priority issues.

Docusign Envelope ID: E89F59B0-3B90-4E34-8563-FAB90D4E1568

EXHIBIT C
MAINTENANCE AND SUPPORT
PROFESSIONAL SERVICES

"Services" means Maintenance and Support Services and Professional Services.

"Maintenance and Support Services" means the ongoing technical support and maintenance services offered by Supplier to end user customers in accordance with the EULA and Supplier's then current customer support policies.

"Professional Services" means implementation, consulting and other professional services offered by Supplier as set forth in the applicable Statement of Work.

Maintenance and Support: The parties agree to allocate maintenance and support obligations in accordance with the following plan:

a. Pre-Sales
   i. Projector and Media Server Choice Design (PPNDA) – Support only Windows
   ii. Design of Number of Cameras, Type of Cameras and their Placement (STL)
b. Implementation
   i. STL Input/Output to Media Server Input/Output Interface (STL with Professional Services Fee)
   ii. Projector Set Up (Panasonic)
   iii. Media Server Set Up (Panasonic)
   iv. Camera SetUp (Panasonic - trained by STL)
   v. STL Software Setup and Deployment (Panasonic and STL)
c. Support & Maintenance
   i. Tier 1 Technical Support / Simple Issues (Panasonic trained by STL)
   ii. Tier 2 Technical Support / Troubleshooting Issues (STL and Panasonic)